

29 DEC 1989

Bill No. 100 of 1989

THE CONSTITUTION (SIXTY-THIRD AMENDMENT) BILL, 1989

**A
BILL**

further to amend the Constitution of India.

BE it enacted by Parliament in the Fortieth Year of the Republic of India as follows:—

- | | |
|--|-------------------------------|
| 1. (1) This Act may be called the Constitution (Sixty-third Amendment) Act, 1989. | Short title and commencement. |
| 5 (2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint. | |
| 2. In article 356 of the Constitution, in clause (5), the proviso shall be omitted. | Amendment of article 356. |
| 3. Article 359A of the Constitution shall be omitted. | Omission of article 359A. |

STATEMENT OF OBJECTS AND REASONS

• The Constitution (Fifty-ninth Amendment) Act, 1988 was passed in March, 1988, making certain changes in regard to making a Proclamation of Emergency in Punjab and to the duration of President's rule in that State.

2. On reconsideration, the Government is of the view that there is no need for the special powers in regard to the Proclamation of Emergency in Punjab as envisaged in the amendment. It is also considered that the amendment to article 356 made by the said Act is no longer needed. It is, therefore, considered that the amendments made by the aforesaid Act should be repealed.

3. As regards President's Proclamation issued on 11-5-1987 under clause (1) of article 356 of the Constitution, this has been approved by both the Houses of Parliament in October, 1989.

4. The Bill seeks to achieve the above objects.

NEW DELHI;

MUFTI MOHAMMED SAYEED.

The 28th December, 1989.

ANNEXURE

EXTRACTS FROM THE CONSTITUTION OF INDIA

* * * *

PART XVIII

EMERGENCY PROVISIONS

* * * *

356. (1) If the President, on receipt of a report from the Governor of a State or otherwise, is satisfied that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution, the President may by Proclamation—

Provi-
sions in
case of
failure
of
constitu-
tional
machi-
nery in
States.

(a) assume to himself all or any of the functions of the Government of the State and all or any of the powers vested in or exercisable by the Governor or any body or authority in the State other than the Legislature of the State;

(b) declare that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament;

(c) make such incidental and consequential provisions as appear to the President to be necessary or desirable for giving effect to the objects of the Proclamation, including provisions for suspending in whole or in part the operation of any provisions of this Constitution relating to any body or authority in the State:

Provided that nothing in this clause shall authorise the President to assume to himself any of the powers vested in or exercisable by a High Court, or to suspend in whole or in part the operation of any provision of this Constitution relating to High Courts.

(2) Any such Proclamation may be revoked or varied by a subsequent Proclamation.

(3) Every Proclamation under this article shall be laid before each House of Parliament and shall, except where it is a Proclamation revoking a previous Proclamation, cease to operate at the expiration of two months unless before the expiration of that period it has been approved by resolutions of both Houses of Parliament:

Provided that if any such Proclamation (not being a Proclamation revoking a previous Proclamation) is issued at a time when the House of the People is dissolved or the dissolution of the House of the People takes place during the period of two months referred to in this clause, and if a resolution approving the Proclamation has been passed by the Council of States, but no resolution with respect to such Proclamation has been passed by the House of the People before the expiration of that period.

the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been also passed by the House of the People.

(4) A Proclamation so approved shall, unless revoked, cease to operate on the expiration of a period of six months from the date of issue of the Proclamation:

Provided that if and so often as a resolution approving the continuance in force of such a Proclamation is passed by both Houses of Parliament, the Proclamation shall, unless revoked, continue in force for a further period of six months from the date on which under this clause it would otherwise have ceased to operate, but no such Proclamation shall in any case remain in force for more than three years:

Provided further that if the dissolution of the House of the People takes place during any such period of six months and a resolution approving the continuance in force of such Proclamation has been passed by the Council of States, but no resolution with respect to the continuance in force of such Proclamation has been passed by the House of the People during the said period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the continuance in force of the Proclamation has been also passed by the House of the People.

(5) Notwithstanding anything contained in clause (4), a resolution with respect to the continuance in force of a Proclamation approved under clause (3) for any period beyond the expiration of one year from the date of issue of such Proclamation shall not be passed by either House of Parliament unless—

(a) a Proclamation of Emergency is in operation, in the whole of India or, as the case may be, in the whole or any part of the State, at the time of the passing of such resolution, and

(b) the Election Commission certifies that the continuance in force of the Proclamation approved under clause (3) during the period specified in such resolution is necessary on account of difficulties in holding general elections to the Legislative Assembly of the State concerned:

Provided that nothing in this clause shall apply to the Proclamation issued under clause (1) on the 11th day of May, 1987 with respect to the State of Punjab.

* * * * *

359A. Notwithstanding anything in this Constitution, this Part shall, in relation to the State of Punjab, be subject to the following modifications, namely:—

Applica-
tion of
this
Part to
the State
of Punjab.

(a) in article 352,—

(i) in clause (1),—

(A) for the opening portion. the following shall be substituted, namely:—

"If the President is satisfied that a grave emergency exists whereby—

(a) the security of India or of any part of the territory thereof is threatened, whether by war or external aggression or armed rebellion; or

(b) the integrity of India is threatened by internal disturbance in the whole or any part of the territory of Punjab,

he may, by Proclamation, make a declaration to that effect in respect of the whole of Punjab or of such part of the territory thereof as may be specified in the Proclamation".

(B) in the *Explanation*,—

(1) after the words "armed rebellion", the words "or that the integrity of India is threatened by internal disturbance in the whole or any part of the territory of Punjab," shall be inserted:

(2) after the words "or rebellion", the words "or disturbance" shall be inserted;

(ii) in clause (9), after the words "armed rebellion", at both the places where they occur, the words "or internal disturbance" shall be inserted;

(b) in article 358, in clause (1), after the words "or by external aggression", the words "or by armed rebellion, or that the integrity of India is threatened by internal disturbance in the whole or any part of the territory of Punjab." shall be inserted:

(c) in article 359, for the words and figures "articles 20 and 21", at both the places where they occur, the word and figures "article 20" shall be substituted.

✱ ✱ ✱ ✱ ✱

(Shri Mufti Mohammed Sayeed, Minister of Home Affairs)